



**U.S. Citizenship
and Immigration
Services**

MAR 23 2011

Jesus Izaguirre Paz
725 Napoleon Boulevard
South Bend, IN 46617

Cc: Justin Burton
20 N. Clark Street, #725
Chicago, Illinois 60602

A 72 570 588

DECISION ON APPLICATION FOR ADJUSTMENT FOR PERMANENT RESIDENCE

Dear Mr. Izaguirre Paz:

On March 22, 2010, you submitted an application for adjustment of status to that of a permanent resident seeking classification under Section 203 (b)(2) of the Immigration and Nationality Act (the "Act"), as a member of a profession with advanced degree or exceptional ability.

Your application for adjustment of status pursuant to Section 245 of the Act was filed improperly with the District Director.

8 CFR § 245.2(a)(1) states in pertinent part:

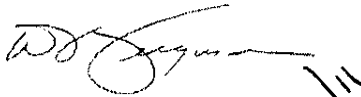
"After an alien, other than an arriving alien, is in deportation or removal proceedings, his or her application for adjustment of status under section 245 of the Act or section 1 of the Act of November 2, 1966 shall be made and considered only in those proceedings."

On November 16, 2009, the Notice to Appear (NTA) was served to Executive Office of Immigration Review (EOIR) in regards to your removal proceedings. If you desire to pursue this application, you must follow all applicable procedures and regulations, including those relating to motions to reopen and applicable fees to the Executive Office for Immigration Review, located at 55 East Monroe Street, Chicago, Illinois 60603, which has sole jurisdiction over this application. 8 CFR § 274a.12(c)(9) allows an alien who has filed an application for adjustment of status to

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lawful permanent resident pursuant to Section 245 of the Act to obtain employment authorization during the period the application is pending. However, you are no longer eligible for employment authorization as of the date of this decision because your application for permanent residence is no longer pending.



Donald P. Ferguson
Field Office Director
DHS:USCIS: DIDR: EXAMS: JM 3/11/2011